

ORDER NO: **2025WRR-000040**

CONCERNING An overpayment of rent and increase to rent pursuant to Section 140 (1) and 140(3) of *The Residential Tenancies Act*.

BETWEEN:

Thorwin Properties
1274 Archibald Street
Winnipeg MB, R2J 0Z3

LANDLORD

AND

Evan Rosner
10-585 Corydon Avenue
Winnipeg, MB R3L 0P3

TENANT

RENTAL UNIT ADDRESS: 10-585 Corydon Avenue, MB R3L 0P3

ORDER

By the authority of Section 140 of The Residential Tenancies Act and after considering the information submitted, it is hereby determined:

The Residential Tenancies Branch finds that the landlord is in compliance with Order W2024-001539 regarding the withdrawal of service for unit 10-585 Corydon Avenue. No contraventions of the Residential Tenancies Act were identified for the period under review.

RESIDENTIAL TENANCIES BRANCH
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Toll-Free in Manitoba: 1-800-782-8403

DATED this 27th, day of June 2025.



K. Hazell, Residential Tenancies Officer

If you want to appeal this Order you must apply to the Residential Tenancies Commission at 1650-155 Carlton Street, Winnipeg MB R3C 3H8 in person or by mail (telephone: (204) 945-2028, toll-free: (800) 782-8403, fax: (204) 945-5453) no later than July 16th, 2025. You must file a copy of this Order with your Notice of Appeal. An appeal suspends the Branch's Order.

REASONS FOR DECISION

Introduction

An investigation into the rents charged for unit 10-585 Corydon Avenue was initiated by the Residential Tenancies Branch (RTB) following a request from the tenant. The tenant alleged that the landlord failed to comply with a prior RTB order regarding a withdrawal of service in accordance with the Residential Tenancies Act (the Act).

Definitions

- **Basic Rent:** The amount of undiscounted rent charged by a landlord.
- **Total Rent:** The sum of basic rent plus parking.
- **Rent Payable:** The total rent less any discount.

Tenant Submissions and Evidence

The tenant claimed that the landlord did not provide a monthly credit for the withdrawal of service as required by RTB order W2024-001539 dated April 2, 2024. The tenant submitted the following documentary evidence:

- The tenant's email correspondence with the landlord.
- A copy of the rent ledger from November 2019 to May 2025.
- Written statements detailing the claim and explanatory notes referencing the submitted documents.

Landlord Submissions and Evidence

The landlord responded that all necessary adjustments were made and reflected in the tenant's ledger. The landlord provided a copy of the same ledger, as well as copies of the 2023 and 2024 lease renewals.

Analysis and Findings

The ledgers and supporting documentation were thoroughly reviewed to determine whether the landlord overcharged the tenant and complied with the withdrawal of service order.

Compliance with Withdrawal of Service Order

According to subsection 139(b) of the Residential Tenancies Act, respecting a withdrawal of service, the director may order that “the rent of the tenants be reduced by that value.” Order W2024-0001539, issued April 2, 2024, required that “the tenant’s rent will be reduced by \$128.00 per month beginning February 1, 2024.”

Upon review, the following was observed:

- The landlord reduced the tenant’s basic rent by \$128, from \$1,218 to \$1,090, in accordance with the order.
- The landlord credited the tenant \$384, refunding the overpayment for February, March, and April 2024.
- The tenant continued to pay the higher rent for May and June 2024, resulting in an accumulated credit balance of \$640 (\$384 credit for February–April, plus \$128 each for May and June for the overpayment of rent).
- The landlord issued a cheque for \$640 to the tenant, returning the account balance to zero.
- The landlord applied for an above-guideline rent increase (AGRI), initially approved from \$1,218 to \$1,463 effective July 1, 2024, but later adjusted by the landlord to \$1,335 to reflect the withdrawal of service.
- The AGRI was appealed, and the Residential Tenancies Commission (RTC) approved a final increase to \$1,309, effective July 1, 2024 (\$26 less than what the landlord had been charging).
- The landlord removed the discount with the lease renewal effective October 1, 2024, and refunded \$104 to the tenant on January 24, 2025, for the AGRI overpayment from October 2024 to January 2025.

Based on this review, the landlord complied with the RTB’s withdrawal of service order. It is important to clarify that, under the Act and the RTB’s order regarding the withdrawal of service, the required adjustment was a reduction to the basic rent – not a separate monthly credit. The landlord was required to reduce the amount of rent charged each month by \$128. Once the rent was reduced, there was no further requirement for a separate credit to appear on the ledger, as the lower rent amount already reflects the withdrawal of service.

Adjustment of Rent Discount

The remaining issue is whether the landlord was entitled to reduce the discount from July to September 2024 due to the RTC's decision. The option found in Section D of the Notice of Rent Increase (NORI) to adjust the discount based on the outcome of the AGRI was not selected on the form the landlord submitted to the RTB. However, the lease agreement, signed by both parties, did include this provision.

Given that the lease agreement stipulated the discount could be adjusted, the RTB finds that the omission on the NORI did not result in unfairness to the tenant, as the relevant information was available prior to signing the lease.

Conclusion

After a thorough review of the evidence and the rent ledger, the RTB has determined that the landlord has complied with the RTB's order regarding the withdrawal of service. The rent was reduced to \$1,309 as required, and all necessary refunds and adjustments were made. As such, based on the evidence provided by both parties, no contraventions of the Residential Tenancies Act were identified for the period under review.

June 27, 2025

Date



K. Hazell, Residential Tenancies Officer